

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
TRAVIS VILLALOBOS,

Plaintiff,

-against-

CITY OF NEW YORK, DETECTIVE JASON M.
BRUNDER Tax Reg. # 923590 and A.D.A. LINDSAY
LIBERMAN,

Defendants,
-----X

Index No.:

Date Purchased:

SUMMONS

Plaintiffs designate KINGS
County as the place of trial.

The basis of venue is:
Plaintiff's Residence

Plaintiffs reside at:
KINGS COUNTY

County of Kings

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, while service is made by delivery upon you personally within the state, or, within 30 days after completion of service while service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, NY
September 22, 2016

RAWLINS LAW, PLLC



Gary N. Rawlins, Esq.

Attorney for Plaintiff

TRAVIS VILLALOBOS

300 Cadman Plaza W, 12th Fl.

Brooklyn, NY 11201

Tel: (212) 926-0050

Fax: (347)332-1592

TO:

CITY OF NEW YORK
Zachary Carter
New York City Law Department
100 Church Street
New York, New York 10007

DETECTIVE JASON M. BRUNDER Shield No. 06513/Tax Reg. # 923590
Brooklyn Robbery Squad
653 Grand Avenue,
Brooklyn, NY 11238

A.D.A. LINDSAY LIBERMAN

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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VERIFIED COMPLAINT

Plaintiff, by his attorney, **GARY N. RAWLINS**, as and for his Verified Complaint, respectfully alleges, upon information and belief that:

1. The Plaintiff, **TRAVIS VILLALOBOS**, at all times herein mentioned was and still is a resident of the County of KINGS and the State of New York.

2. At all times mentioned herein, Defendant **DETECTIVE JASON M. BRUNDER Tax Reg. # 923590** was and still is a resident of the County of KINGS and the State of New York.

3. At all times mentioned herein, Defendant **A.D.A. LINDSAY LIBERMAN** was and still is a resident of the County of KINGS and the State of New York

4. At all times herein mentioned Defendant **THE CITY OF NEW YORK ("NYC")**, was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.

5. Prior to the commencement of this action, a notice of claim in writing was served on behalf of Plaintiff **TRAVIS VILLALOBOS** upon NYC in accordance with Section 50-e of the General Municipal Law.

6. That notice of claim was served on August 28, 2015.
7. Within ninety days of (90) of June 24, 2015, a notice of claim in writing was served on behalf of Plaintiff **TRAVIS VILLALOBOS** upon **NYC**, in accordance with Section 50-e of the General Municipal Law.
8. Prior to the commencement of this action, notice of the intention of Plaintiff **TRAVIS VILLALOBOS** to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by the New York City Charter to adjust such claims, was served on behalf of Plaintiff upon **NYC**.
9. Although more than thirty (30) days have elapsed since service of such notice of claim, Defendants neglected and have refused to pay said claim or adjust same.
10. A hearing pursuant to General Municipal Law 50-h was held on August 24, 2016.
11. This action is commenced within one (1) year and ninety (90) days from June 24, 2015, the date on which malicious prosecution ceased.
12. At all relevant times, Defendant **DETECTIVE JASON M. BRUNDER Tax Reg. # 923590** was a member of the **NYPD**, and was an employee of Defendant **CITY**, and were acting for, upon and in the course of and in the furtherance of the business of their employers and within the scope of their employment.
13. The individual Defendants were acting pursuant to the authority conferred upon them by Defendant municipality.
14. At all times herein mentioned, Defendants **NYC, DETECTIVE JASON M. BRUNDER Tax Reg. # 923590 and A.D.A. LINDSAY LIBERMAN** stood in such a relationship with each other in providing law enforcement services as to make each liable for the acts and omissions of the others.

15. Defendants **NYC** are vicariously liable for the acts of Defendant **DETECTIVE JASON M. BRUNDER Tax Reg. # 923590**.

16. By reason of the foregoing, Plaintiff **TRAVIS VILLALOBOS** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A FIRST 1983 CAUSE OF ACTION FOR FALSE ARREST AND
MALICIOUS PROSECUTION AS AGAINST ALL DEFENDANTS IN VIOLATION OF
PLAINTIFF'S UNITED STATES CONSTITUTIONAL RIGHTS**

17. Plaintiff **TRAVIS VILLALOBOS** repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

18. Plaintiff **TRAVIS VILLALOBOS** sues all Defendants in their capacities.

19. On or about March 5, 2014, Plaintiff Travis Villalobos was at his residence when he looked outside and saw a group of police officers, including Detective Jason M. Brunder Tax Reg. # 923590, enter his bedroom. When he asked why they were there, no one gave him an answer. They asked him to come outside and once outside he was handcuffed and placed in an unmarked car. From there he was driven to the 88th Precinct where a DNA sample was collected. The next day, Mr. Villalobos appeared in criminal court and charged with several counts of burglary, robbery, assault, larceny, menacing and harassment. At that point, Mr. Villalobos' case was remanded to Supreme Court. From there, Mr. Villalobos was transported to Rikers Island where he spent approximately 45 days before being bailed out. Upon information and belief, during the course of that time, Defendant A.D.A. Lindsay Lieberman knew that the DNA sample from Mr. Villalobos was not a match to that obtained regarding a crime committed and therefore he was not the perpetrator of the crime nor guilty of the charges imposed upon him. After taking a lie detector test, all charges against Mr. Villalobos were dismissed on June 24, 2015.

20. The wrongful, unjustifiable and unlawful apprehension, arrest, detention and imprisonment were all carried out without a warrant or probable cause.

21. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff **TRAVIS VILLALOBOS**.

22. Plaintiff asserts a Monell Claim against the City of New York as prior to March 5, 2014, the City of New York, the New York Police Department developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Mr. Villalobos' rights. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizen's complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by the City of New York. It was the policy and/or custom of the City of New York to inadequately supervise and train its police officers, managers and employees including the respondent officers and ADA'S thereby failing to adequately discourage further constitutional violations on the part of their agents. Officers were encouraged and often harassed to make as many arrests as possible without concern for the validity of those arrests. The respondent's agencies did not require appropriate in-service training or re-training of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convince at the expense of others. As a result of the above described policies and customs, police officers of the City of New York, including the respondent officers, believed that their actions would not be properly monitored by supervisors and that misconduct would not be investigated or sanctioned, but would be tolerated. The above described policies and customs demonstrated a deliberate indifference on the part of policy makers of the City of New York to the constitutional rights of persons within the City, and were the cause of the violations of Claimants right alleged herein. **TRAVIS VILLALOBOS** was injured by reason of the negligence, recklessness, careless, and malicious prosecution perpetrated by each and every one of the respondents involved individually and jointly, their agents, servants employees and/or

licensees in the control, supervision, hiring and training of the officers and employees who were deliberately indifferent to Mr. Navarro's civil rights and rights under his employment contract.

23. Throughout this period, Plaintiff **TRAVIS VILLALOBOS** was wrongfully, unlawfully and unjustifiably held under arrest, deprived of his liberty, imprisoned, and falsely charged.

24. Defendants, their officers, agents, servants and/or employees were responsible for plaintiff **TRAVIS VILLALOBOS** false arrest, detention and imprisonment during this period of time.

25. Throughout plaintiff **TRAVIS VILLALOBOS** imprisonment, defendants, and their offices, agents servants, and employees refused to give plaintiff an opportunity to establish his innocence.

26. Defendants intended to and did in fact confine Plaintiff **TRAVIS VILLALOBOS** and physically prevented him from leaving their custody and kept him under the supervision without access to his freedom, family and home.

27. Plaintiff **TRAVIS VILLALOBOS** was conscious of his unlawful arrest, detention and imprisonment and did not consent to the confinement.

28. At all relevant times, the false arrest and imprisonment of plaintiff **TRAVIS VILLALOBOS** was without right or privilege, and without probable or reasonable cause.

29. At all relevant times, the false arrest, malicious prosecution, imprisonment of Plaintiff **TRAVIS VILLALOBOS** were against his will.

30. All of the foregoing occurred without fault or provocation on the part of plaintiff **TRAVIS VILLALOBOS**.

31. As consequence of Defendant's wrongful actions, negligent behavior, and violations of **MR. VILLALOBOS' FEDERAL CONSTITUTIONAL RIGHT'S**. Plaintiff **TRAVIS VILLALOBOS**:

- a. was deprived of his freedom;
- b. was incarcerated and suffered incarceration;
- c. was subject to great fear, terror personal humiliation degradation, ridicule and disgrace;
- d. was subjected to great physical, mental and emotional distress, suffering and harm, resulting in the need to seek professional counseling for the trauma which he incurred;
- e. was discredited in the minds of many members of the community, having his personal reputation and character injured;
- f. was prevented from attending to his necessary affairs in business during the period of his detention;
- g. was permanently impaired as to his earning ability;
- h. And continues to suffer pain and mental and emotional distress as a result of the aforesaid unlawful conduct of Defendants their agents, employees, and servants.

32. Defendants acted knowingly, willfully, wantonly, recklessly unlawfully, and in unreasonable, unconscionable and flagrant disregard of Plaintiff's rights, privileges, welfare and well-being, and were guilty of egregious and gross misconduct toward him.

33. By reason of the foregoing, plaintiff **TRAVIS VILLALOBOS** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR THE SECOND CAUSE OF ACTION
FOR FALSE ARREST AS AGAINST ALL DEFENDANTS

34. Plaintiff **TRAVIS VILLALOBOS** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

35. Plaintiff **TRAVIS VILLALOBOS** sues all Defendants in their individual capacities.

36. On March 5, 2014, Plaintiff **TRAVIS VILLALOBOS** was wrongfully, unlawfully and unjustifiably arrested, detained and deprived of his liberty against his will, and was imprisoned by Defendants, their officers, agents, servants, employees, agencies and/or departments and/or at the instigation of those departments.

37. The wrongful, unjustifiable and unlawful apprehension, arrest, detention and imprisonment were all carried out without a warrant.

38. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff **TRAVIS VILLALOBOS**.

39. On or about March 5, 2014, Plaintiff Travis Villalobos was at his residence when he looked outside and saw a group of police officers, including Detective Jason M. Brunder Tax Reg. # 923590, enter his bedroom. When he asked why they were there, no one gave him an answer. They asked him to come outside and once outside he was handcuffed and placed in an unmarked car. From there he was driven to the 88th Precinct where a DNA sample was collected. The next day, Mr. Villalobos appeared in criminal court and charged with several counts of burglary, robbery, assault, larceny, menacing and harassment. At that point, Mr. Villalobos' case was remanded to Supreme Court. From there, Mr. Villalobos was transported to Rikers Island where he spent approximately 45 days before being bailed out. Upon information and belief, during the course of that time, Defendant A.D.A. Lindsay Lieberman knew that the DNA sample from Mr. Villalobos was not a match to that obtained regarding a crime committed and therefore he was not the perpetrator of the crime nor guilty of the charges imposed upon him. After taking a lie detector test, all charges against Mr. Villalobos were dismissed on June 24, 2015.

40. Plaintiff **TRAVIS VILLALOBOS** was then unexpectedly and forcefully arrested, although he did not resist.

41. Thereafter, Plaintiff **TRAVIS VILLALOBOS** was falsely arrested.

42. Throughout this period, Plaintiff **TRAVIS VILLALOBOS** was wrongfully, unlawfully and unjustifiably held under arrest, deprived of his liberty, imprisoned, and falsely charged.

43. Defendants, their officers, agents, servant and/or employees were responsible for Plaintiff **TRAVIS VILLALOBOS** arrest, detention and imprisonment during this period of time.

44. Throughout Plaintiff **TRAVIS VILLALOBOS** imprisonment, Defendants, and their officers, agents, servants, and employees refused to give Plaintiff an opportunity to establish his innocence.
45. Defendants intended to and did in fact confine Plaintiff **TRAVIS VILLALOBOS** and physically prevented his from leaving their custody and kept him under the supervision without access to him freedom, family and home.
46. Plaintiff **TRAVIS VILLALOBOS** was conscious of his unlawful arrest, detention and imprisonment and did not consent to the confinement.
47. At all relevant times, the unlawful, wrongful and false arrest and imprisonment of Plaintiff **TRAVIS VILLALOBOS** was without right or privilege, and unjustified and without probable or reasonable cause.
48. At no time did Defendants or their officers, agents, servants, employees, agencies and/or departments have a warrant or other legal process for the arrest, detention or imprisonment of Plaintiff **TRAVIS VILLALOBOS**.
49. On or about the time of Plaintiff **TRAVIS VILLALOBOS** unlawful arrest, criminal charges were brought against him without probable cause.
50. At all relevant times, the false, unlawful, and improper arrest and imprisonment of Plaintiff **TRAVIS VILLALOBOS** was forcible and against his will.
51. All of the foregoing occurred without fault or provocation on the part of Plaintiff **TRAVIS VILLALOBOS**.
52. As consequences of Defendants' wrongful actions, negligent behavior, and violation of New York State and common laws, Plaintiff **TRAVIS VILLALOBOS** :
- a. was deprived of his freedom;

- b. was incarcerated and suffered incarceration;
- c. was subjected to great fear, terror, personal humiliation, degradation, ridicule and disgrace;
- d. was subjected to great physical, mental, and emotional distress, suffering and harm, resulting in the need to seek professional counseling for the trauma which he incurred;
- e. was discredited in the minds of many members of the community, having his personal reputation and character injured;
- f. was prevented from attending to his necessary affairs in business during the period of his detention;
- g. was permanently impaired as to his earning ability;
- h. And continues to suffer pain and mental and emotional distress as a result of the aforesaid unlawful conduct of Defendants, their agents, employees, and servants.

53. Defendants acted knowingly, willfully, wantonly, recklessly, unlawfully, and in unreasonable, unconscionable and flagrant disregard of Plaintiff's rights, privileges, welfare and well-being, and were guilty of egregious and gross misconduct toward him.

54. By reason of the foregoing, Plaintiff **TRAVIS VILLALOBOS** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION FOR FAILURE TO INTERVENE TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS AS AGAINST ALL DEFENDANTS

55. Plaintiff **TRAVIS VILLALOBOS** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

56. As a result of the above actions, Defendants **NYC**, individually, and/or vicariously, by and through its agents, servants and /or employees, and, failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff **TRAVIS VILLALOBOS** by Defendants **DETECTIVE JASON M. BRUNDER Tax Reg. # 923590** and **A.D.A. LINDSAY LIBERMAN**.

57. As a result of the foregoing, Defendants **NYC and DETECTIVE JASON M. BRUNDER Tax Reg. # 923590** individually and and/or vicariously by and through their agents servants, and/or employees, displayed a deliberate indifference to Plaintiff **TRAVIS VILLALOBOS** rights to be free from unreasonable searches and seizures and excessive use of force.

58. As a result of the foregoing, Defendants **NYC** individually and/or vicariously by and through its agents servants, and/or employees, including **NYPD** acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to Plaintiff's rights and physical well being.

59. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A FOURTH MONELL CAUSE OF ACTION
FOR NEGLIGENT HIRING, TRAINING, RETENTION, AND SUPERVISION
AGAINST DEFENDANTS NYC

60. Plaintiff **TRAVIS VILLALOBOS** repeats and re-alleges each and every allegation contained in the paragraph above with full force and effect as if each were more fully set forth herein.

61. That at the time of the aforementioned false arrest, false imprisonment, defamation, and violations of Plaintiff **TRAVIS VILLALOBOS** civil rights, all of the above-captioned Defendants were acting in the course and general scope of their employment duties and official duties pursuant to the authority given them by Defendant **CITY**.

62. Defendants **NYC**, at all relevant times herein should have known or had reason or opportunity to know, that the agents, servants and/or employees named as Defendants in this complaint were unfit for the employment for which they were hired, unfit for the official duties delegated to them and unfit for the law enforcement, investigatory, and prosecutorial responsibilities to which they were assigned.

63. That by hiring, retaining, employing, failing to supervise, failing to screen, failing to test, failing to evaluate, failing to monitor, failing to manage, failing to train and failing to investigate the aforementioned agents, servants and/or employees, Defendants **NYC** negligently created and caused a situation while it was likely that said agents, servants and/or employees would, as a result of their work history, unfit character, malicious temperament, criminal propensity, inadequate training, inadequate management and inadequate supervision, unlawfully arrest, unlawfully imprison, unlawfully deprive innocent persons such as Plaintiff **TRAVIS VILLALOBOS** of his Constitutional rights under the New York State Constitution, intentionally, wrongfully and unjustifiably arrested, detained and deprived such person of his liberty against his will, and imprisoned such person without sufficient reasons or probable cause appearing therefore. Such acts in promoting arrest at all costs despite exculpatory DNA evidence form the basis of Plaintiff's Monell claim.

64. Defendants **NYC** knew or should have known in the exercise of due and reasonable care that the aforementioned agents, servants and/or employees were malicious, vicious, potentially dangerous, and negligent and performing perjurious, criminal and illegal acts during the course of their employment duties.

65. Defendants **NYC** were negligent in the hiring, employment, training, retention, management, supervision, screening, testing, evaluating, monitoring, and investigating of the aforementioned agents, servants and/or employees.

66. That by reason of and in consequence of said negligence and lack of reasonable care on the part of defendants **NYC** and their agents, servants and/or employees, Plaintiff **TRAVIS VILLALOBOS** suffered the afore-stated injuries.

67. Prior to March 5, 2014 the City of New York developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of persons in New York, which caused the violation of Navarro's rights.

68. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizen complaints of police misconduct, and acts of misconduct were instead tolerated by the City of New York.

69. It was the policy and/or custom of the City of New York to inadequately supervise and train its police officers, including the Defendant officers, thereby failing to adequately discourage further constitutional violations on the part of its police officers. The City did not require appropriate in-service training or re-training of officers who were known to have engaged in police misconduct.

70. As a result of the above described policies and customs, police officers of the City of New York, including the Defendant officers, believed that their actions would not be properly monitored by supervisory offers and that misconduct would not be investigated or sanctioned, but would be tolerated.

71. The above described policies and customs demonstrated a deliberate indifference on the part of policymakers of the City of New York to the constitutional rights of persons within the City, and were the cause of the violations of Plaintiff's rights alleged herein.

72. By reason of the foregoing, Plaintiff **TRAVIS VILLALOBOS** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION
FOR INTENTIONAL INFLECTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS

73. Plaintiff **TRAVIS VILLALOBOS** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

74. The Defendants, and each of them, acted outrageously for their above-stated roles in the wrongful stop, detainment, charging, full body strip searching, failing to investigate, failure to advise to law, rule and regulations known to them, failing to heed Plaintiff **TRAVIS VILLALOBOS** protestations, manhandling, false arrest, prolonged captivity, intimidation and public humiliation of Plaintiff.

75. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against the Plaintiff **TRAVIS VILLALOBOS** without any further investigation of the incident. Defendants knew or had reasons to know that the criminal charges against Plaintiff were false or without merit, yet that they detained and prosecuted Plaintiff with the intention of causing further harm and duress to the Plaintiff.

76. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff **TRAVIS VILLALOBOS** and injury to his name and reputation.

77. Said harm did in fact occur in this case, in that Plaintiff **TRAVIS VILLALOBOS** was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health; to the extent that Plaintiff has had to seek support and counseling within the family.

78. By reason of the foregoing, Plaintiff **TRAVIS VILLALOBOS** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR AN SIXTH CAUSE OF ACTION
FOR PUNITIVE DAMAGES

AGAINST ALL DEFENDANTS

79. Plaintiff **TRAVIS VILLALOBOS** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

80. Defendants' acts were reckless, willful, wanton, malicious, oppressive, and outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff **TRAVIS VILLALOBOS** well being, and were based on a lack of concern and ill-will towards Plaintiff.

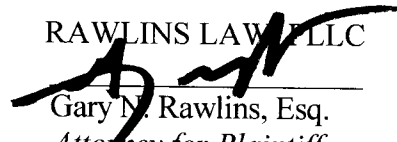
81. Plaintiff **TRAVIS VILLALOBOS** therefore demands punitive damages in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff **TRAVIS VILLALOBOS** demands judgment against the defendants as follows:

- a. On the First Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- b. On the Second Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- c. On the Third Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;

- d. On the Fourth Cause of Action against **THE CITY OF NEW YORK** all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- e. On the Fifth Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- f. On the Sixth Cause of Action against all of the above captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- g. Together with costs, attorney's fees and disbursements of this action.
- h. Such other and further relief as to the Court may seem just and proper.

Dated: Brooklyn, NY
September 22, 2016

RAWLINS LAW, PLLC

Gary N. Rawlins, Esq.
Attorney for Plaintiff
TRAVIS VILLALOBOS
300 Cadman Plaza W, 12th Fl.
Brooklyn, NY 11201
Tel: (212) 926-0050
Fax: (347)332-1592

To:

CITY OF NEW YORK
Zachary Carter
New York City Law Department
100 Church Street

New York, New York 10007

DETECTIVE JASON M. BRUNDER Shield No. 06513/Tax Reg. # 923590

Brooklyn Robbery Squad

653 Grand Avenue,

Brooklyn, NY 11238

A.D.A. LINDSAY LIBERMAN

ATTORNEY'S VERIFICATION

Gary N. Rawlins, an attorney admitted to practice in the Courts of the State, and attorney for Plaintiff states:

That your affirmant has read the foregoing instrument and knows the contents thereof; that the same is true to your affirmant's own knowledge except as to the matters which are stated therein to be alleged on information and belief, and as to those matters your affirmant believes them to be true. The source of your affirmant's information and belief is an investigation made with respect to the facts in this action.

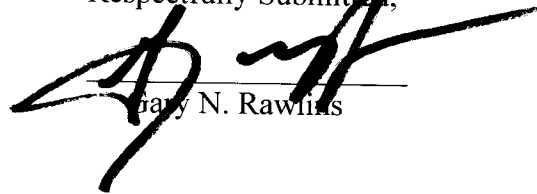
That the reason this Verification is made by affirmant and not by the Plaintiff is because the Plaintiff does not reside within the county where I maintain my Office.

The undersigned affirms that the foregoing statement is true, under penalties of perjury.

Date: Brooklyn, NY

9/23, 2016

Respectfully Submitted,



Gary N. Rawlins

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
TRAVIS VILLALOBOS,

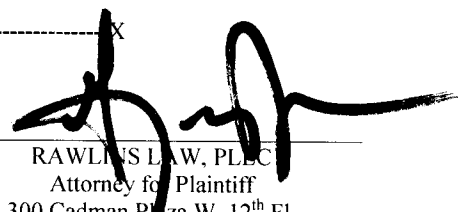
Plaintiff,

-against-

CITY OF NEW YORK, DETECTIVE JASON M. BRUNDER Tax Reg. #
923590 and A.D.A. LINDSAY LIBERMAN,
Defendants,
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**SUMMONS and VERIFIED
COMPLAINT**


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To:

CITY OF NEW YORK
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100 Church Street
New York, New York 10007

DETECTIVE JASON M. BRUNDER Shield No. 06513/Tax Reg. # 923590
Brooklyn Robbery Squad
653 Grand Avenue,
Brooklyn, NY 11238

A.D.A. LINDSAY LIBERMAN

Service of a copy of the within is hereby admitted

Dated: _____

Attorney(s) for Defendant(s)

PLEASE TAKE NOTICE

That the within is a (certified) true copy of a
Entered in the office of the clerk of the within named court on

NOTICE OF ENTRY

That an Order of which the within is a true copy will be presented for settlement to the Hon. _____ one of
the judges of the within named Court.

NOTICE OF SETTLEMENT

Dated:

STATE OF NEW YORK, COUNTY OF KINGS

The undersigned, an attorney admitted to practice on the courts of New York State

Certification By Attorney	Certifies that the within Has been compared by the undersigned with the original and found to be true and complete copy.
Attorney's Affirmation	Shows deponent I The attorney(s) of record for the plaintiff In the within action; deponent has read the foregoing

And knows the contents thereof; the same is